

9.40. Applicant declares under penalty of perjury that he is an attorney licensed to practice in the State of Virginia and in the Federal Courts of Virginia and Michigan. Applicant is employed by McGuire Woods. Applicant is not a member of the State Bar of California, nor is Applicant a resident of this state, nor does Applicant maintain regular employment or substantial business herein.

Applicant further represents that he/she has not been suspended, disbarred, or resigned from the practice of law in any jurisdiction. No court has Applicant's application for admission *pro hac vice*.

Having considered the moving papers and the applicable law, the Court finds that the Motion satisfies the requirements of California Rule of Court 9.40.

Ruling

1. Defendant's Motion for Admission of Applicant Pro Hac Vice is **granted**. Applicant is admitted to appear *pro hac vice* for the duration of this action, subject to the conditions set forth in California Rule of Court 9.40.
2. The Clerk is directed to file the proposed order lodged with the Court on January 15, 2026, attaching a copy of this ruling. Moving party shall file a copy with the State Bar of California.
3. No appearance is required at the hearing on July 15, 2026.

13. 9:00 AM CASE NUMBER: C25-00110
CASE NAME: MARLON ROBINSON VS. SAMMY MIZIRAWI
HEARING ON DEMURRER TO: RE 2ND AMENDED COMPLAINT
FILED BY: MIZIRAWI, SAMMY
TENTATIVE RULING:

Defendant, Sammy Mizirawi, demurs to the fifth, seventh, and eighth causes of action in plaintiffs' Second Amended Complaint ("SAC"). The demurrer is **sustained**. The motion to strike is **granted**. Defendant shall file and serve his answer on or before July 27, 2026.

Because plaintiffs fail to provide any proposed facts that would change the outcome herein, leave to amend is **denied**. If plaintiffs contest this ruling, they shall come to the hearing prepared to discuss any additional facts that might be added to an amended complaint.

I. Background

Plaintiffs, Marlon Robinson and Sandra Robinson, signed a lease and moved into the subject premises in 2014. (SAC, ¶18.) In December of 2023, plaintiff began experiencing problems that materially affected the habitability of the premises. (*Id.* at ¶19.) In January 2024, plaintiff discovered mushrooms and black mold growing on the walls and carpet inside the premises and behind, and on, his stereo components. (*Id.* at ¶20.) Plaintiff complained to his landlord, defendant Sammy Mizirawi, who came and ineffectively washed the walls with bleach. (*Ibid.*) During this time plaintiff experienced a lot of coughing and was prescribed medications. (*Id.* at ¶21.) Plaintiff purchased a mold test kit to confirm the presence of mold. (*Id.* at ¶22.)

On or about January 26, 2023, while plaintiff Sandra Robinson was sleeping on the couch, the ceiling fell in due to a water leak, causing large amounts of insulation to drop onto her, the couch, the table, and the floor. (SAC, ¶23.) As of August 2024, the leak in the roof was still not repaired, black

mold and mushrooms continued to grow on the walls and on plaintiff's furniture, and plaintiff lost property due to defendant's failure to remedy the uninhabitable conditions. (*Id.* at ¶25.) By September 2024, plaintiff was forced to vacate the premises. (*Id.* at ¶26.) On information and belief, plaintiff alleges defendant "engaged in a pattern of harassment and intimidation of plaintiff calculated to circumvent lease(s) provisions, state and local law and to induce plaintiff to vacate the Subject Premises and involuntarily give up plaintiff's tenancy rights[.]" (*Id.* at ¶27.)

Plaintiff brought suit against defendant on January 13, 2025, alleging nine causes of action: (1) Breach of Contract; (2) Breach of the Covenant of Quiet Enjoyment – Contract; (3) Breach of Implied Warranty of Habitability; (4) Negligence (including Negligence Per Se); (5) Intentional Infliction of Emotional Distress ("IIED"); (6) Bad Faith Business Practices (B&P § 17200, et seq.); (7) Fraud; (8) Negligent Misrepresentation; and; (9) Nuisance. After a demurrer was sustained to the fifth, seventh, and eighth causes of action (IIED, fraud, and negligent misrepresentation, respectively), parties stipulated to allow the addition of another plaintiff in the First Amended Complaint, then plaintiffs filed the currently-operative SAC on January 20, 2026.

After meeting and conferring with plaintiffs (see Declaration of Harrison Wheeler, Esq.), substantially in compliance with Code of Civil Procedure sections 430.41 (a) and 435.5 (a), defendant filed this demurrer to the fifth, seventh, and eight causes of action, and this motion to strike paragraphs 126, 127, 128, 129, and 130 of the SAC. Plaintiffs oppose both motions.

II. Standard on Demurrer

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30 (a).) One such grounds for demurrer exists where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) Another such ground is uncertainty. (Code Civ. Proc., § 430.10 (f).) In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

III. Discussion – Demurrer

A. Fifth C/A – IIED

Defendant argues that the SAC still fails to allege the elements of a cause of action for IIED.

The elements of the tort of IIED are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. To be outrageous, conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Christensen v. Super. Ct.* (1991) 54 Cal.3d 868, 903.) The conduct must be intentional or, where reckless disregard of the plaintiff's interests is the theory of recovery, the presence of the plaintiff at the time the outrageous conduct occurs is essential to the claim. (*Ibid.*)

"In order to avoid a demurrer, the plaintiff must allege with 'great[] specificity' the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832 quoting *Schlauch v. Hartford Accident & Indemnity Co.* (1983) 146 Cal.App.3d 926, 936.)

Plaintiff references *failures* in maintenance, but no acts “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (See *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.) While plaintiffs’ opposition emphasizes that the housing was “substandard,” the providing of the housing is the only act alleged by defendant. The ceiling collapse was unfortunate, but no specific allegations indicate defendant knew such collapse would occur. Simply providing housing (in which plaintiffs had lived for nearly a decade) or failing to regularly inspect, is insufficient.

To the extent that plaintiffs refer to a “pattern of harassment and intimidation,” or any constructive eviction (see SAC, ¶17), no specific (non-conclusory) facts are provided.

Since plaintiffs do not provide any further facts they would allege if permitted, the demurrer to the fifth cause of action is **sustained without leave to amend**, on the basis that the complaint fails to state sufficient facts to constitute a cause of action for IIED. As for uncertainty, the Court previously overruled a demurrer on this ground and neither the revisions to the SAC, nor the arguments in this demurrer, alter that outcome.

B. Seventh and Eighth C/A – Fraud and Negligent Misrepresentation

Defendant challenges the seventh cause of action on the grounds of failure to articulate sufficient facts. Plaintiffs oppose, arguing that the elements of fraud are stated.

“The elements of fraud that will give rise to a tort action for deceit are: (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974, internal quotation marks omitted; see also Civ. Code, §§ 1709-1710.)

The Court previously sustained a demurrer to fraud based on the lack of particularity. Fraud must be pled specifically; general and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The policy of liberal construction of the pleadings will therefore not ordinarily be invoked with respect to fraud. (*Ibid.*) This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ (*Ibid.*)

Defendant is alleged to have made misrepresentations that the premises were fit for habitation “through language located within the lease agreement” and “by defendant’s actions offering the Subject Premises as available for rent.” (SAC, ¶18.) Plaintiffs seek to allege multiple representations “[w]hen plaintiff signed the lease agreement and throughout plaintiff’s tenancy.” (SAC, ¶37.) At the same time, the SAC contends that defendant failed to perform “any inspections” to ensure that the premises remained habitable. (SAC, ¶18.)

There is, at best, an *inference* that plaintiffs would not have lived in the premises had they known about the water intrusion issues. However, the tenancy lasted approximately ten years. It was not until December 1, 2023 that “plaintiff began experiencing problems that materially affect the habitability of the Subject Premises.” (SAC, ¶19.) It is unclear whether and when any issues were reported to the landlord. If landlord did not conduct any inspections, as plaintiffs allege, it is unclear how they could justifiably rely on unspecified statements by him, whether oral or in “language located within the lease.”

Further, if the plaintiffs’ SAC accurately states the date of the ceiling collapse—January 26, 2023—then the plaintiffs stayed close to two years beyond that date and reliance on any

representation by the landlord about condition of the premises was not justifiable.

In the SAC, plaintiffs add little in the way of specific additional facts that would elevate the 2023-2024 moisture and mold issues to fraud or misrepresentation issues as far back as 2014.

While plaintiffs allege that defendant misrepresented the problem was “resolved and that the Subject Premises were habitable,” they admit to moving out because the problem persisted. This demonstrates a lack of reliance, not its existence.

The SAC fails to sufficiently allege the misrepresentations, as well as the how, when, where, and by what means they were tendered. The pleading must answer each of these questions for each specific representation alleged. Because the basis on which fraud is alleged is unclear, the cause of action is also uncertain.

The eighth cause of action for negligent misrepresentation is subject to the same analysis because the standard for pleading negligent misrepresentation only differs from fraud in that it does not require knowledge of falsity. (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1252.)

The demurrer to the seventh and eighth causes of action is **sustained**.

IV. Motion to Strike

The Court *may*, upon a motion to strike by defendant: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint, or from a matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a).) In ruling on motion to strike, courts do not read allegations in isolation, but rather as a whole, all parts in their context, assuming their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Defendant landlord moves to strike paragraphs 126, 127, 128, 129, and 130 of the SAC on the basis that they violate Code of Civil Procedure, § 425.10 (b), which states that “the amount demanded shall not be stated” in a complaint for personal injury or wrongful death.

Plaintiffs, in response, argue about punitive damages and whether the SAC contains sufficient facts to justify them. They mention only once, in a conclusory statement, that “the challenged prayer allegations are entirely proper.” The arguments are not on point and are irrelevant to whether a plaintiffs are statutorily prohibited from mentioning specific dollar amounts in the SAC’s prayer for relief. It appears such specific dollar amounts are improper.

Accordingly, the motion to strike is **granted** without leave to amend.

14. 9:00 AM CASE NUMBER: C25-00110

CASE NAME: MARLON ROBINSON VS. SAMMY MIZIRAWI

HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 2ND AMENDED COMPLAINT

FILED BY: MIZIRAWI, SAMMY

TENTATIVE RULING:

Please see Line 13.